

Kaji Jamal Ahmad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 July 2022 · WRIT - C No. 18650 of 2022 · **Writ disposed; liberty to file Para 6.8 objection; coercive stay eight weeks.**

HEADNOTE

Without opinion on merits, a writ against a recovery certificate of Rs.1,00,027 was disposed of with liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks. If filed, respondent no. 4 must decide it in accordance with law within the next four weeks after a reasonable opportunity of hearing. Coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The petitioner challenged a recovery certificate dated 22 September 2020 for Rs.1,00,027 issued by respondent no. 4 of the Power Distribution Corporation to the Collector, Sonbhadra, and sought a mandamus to decide his representation dated 25 June 2020 and a restraint on coercive action. Counsel for the licensee stated on instructions that the petitioner could file an objection against the demand, to be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

6.8 objection as alternate remedy to writ against recovery

HOLDING

A writ challenging a recovery certificate is disposed of without opinion on merits, with liberty to the consumer to submit an objection under Para 6.8 of the Supply Code before the assessing officer within four weeks; if so submitted, the objection shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing, and no coercive action shall be taken on the demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The writ against the recovery certificate is closed without a merits decision and the consumer is relegated to a Para 6.8 objection. ¶ 1

assessment-6.8-alternate-remedy The demand is left to be tested, if at all, on a time-bound Para 6.8 objection after hearing, not on the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 22.09.2020 FOR RS.1,00,027

Court expressly declined to express any opinion on merits. ¶ 1